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Q7 critically analyze the shift from caste-based to multi-axis affirmative action in India with examples from recent state-level initiatives such as sub categorization and gender based reservations (38 marks)

→ Reservation in India is not a post-independence phenomenon. Its roots go deep into colonial and pre-colonial history, as well as early nationalist demands.

Origin of reservation in India:-

• Pre-independence origins:->

→ Satyashodhak Samaj (1873) and Non Brahmin movement in south India demanded proportional representation.

→ Communal award (1932) by the British proposed separate electorates for Dalits which later modified into reserved seats after the Poona Pact.

• Constitutional Moment:->

→ Dr. B.R. Ambedkar, as chairman of the Drafting Committee, framed reservation not as charity but as an instrument of democratic redistribution.

→ SCs/STs were constitutionally guaranteed reservation in:
 → legislatures (Article 330, 332)
 → services (Article 16(4))
 → education (Article 15(4))

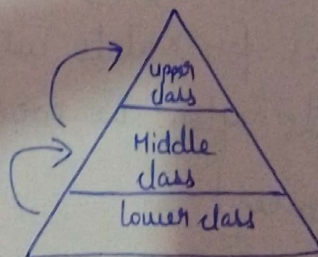
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Constitutional Framework of reservation in India :-

- ↳ Article 15(4), (15), (16) → reservation in educational institutions for SCs, STs, OBCs and EWS
- ↳ Article 16(4), (4A), 16 → reservation in public employment and promotions.
- ↳ Article 46 (Directive Principle) → The state shall promote the educational and economic interests of the weaker sections.

Why reservation in India :-

- ↳ instrument to undo "historical injustice".
- ↳ equality of opportunity → demands democratisation of opportunity.
- ↳ A tool for social mobility

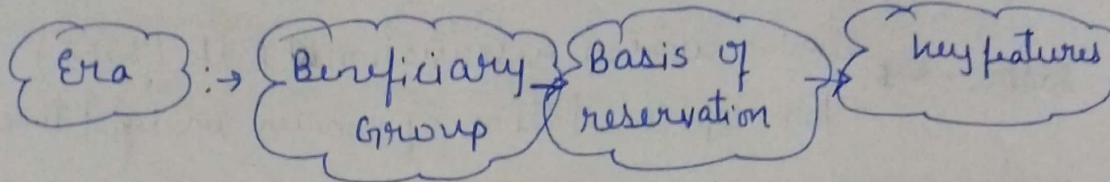


- ↳ Political inclusion and empowerment.
- ↳ constitutional Morality and substantive equality.

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Shift from caste-based compensation to Multi-axis affirmative action :-

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↳ 1950s-70 :- SCs and STs → Birth^{based} + caste → compensatory stigma and social exclusion

↳ Eg: Reservation for SC/STs in Job and education.

↳ 1990s :- OBCs → Educational and social Backwardness (non-untouchable castes) → Representational

↳ Eg: Mandal Commission, 1979 used social, educational and economic indicators to identify OBCs.

↓
27% reservation for OBCs in central services

↓
introduction of creamy layer concept

↳ 2000s :- women → Gender as structural disadvantage (horizontal) → Equity Based.

↳ Eg: 73rd and 74th Amendments (1992-93): Mandated 33% reservation for women in panchayati Raj institutions and urban local Bodies.

↳ Eg:- Bihar Model: Bihar became a leader in
↳ 50% women reservation in panchayats
↳ 35% horizontal reservation for women

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in state jobs across all categories (SC, ST, OBC, EBC, UR).

↳ ~~2010s - 20s~~ ^{Ex:} → women reservation Bill (2023) for representation of women in legislature.

↳ 2010s - 20s : → EWS (upper → Economic → class-
castes) hardships Based

^{Ex:} - 103rd constitutional Amendment: introduced 10% reservation for EWS among general category candidates (non SC/ST/OBC).

↳ Ongoing : → Disabled, Trans → intersection → inclusive
gender, Religious nality and framework
Minorities composite disadvantage

^{Ex:} - sub-categorization within OBCs in Andhra Pradesh, Tamil Nadu, Bihar etc. due to intra-caste disparities.

^{Ex:} - SC-subcategorisation in Punjab, Haryana due to intra caste disparities among Dalits.

^{Ex:} - Region-based reservation demands in Maharashtra and Jharkhand due to regional backwardness

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Merits of Multi-axis affirmative action in India :-

- ↳ promotes equitable distribution of benefits within backward classes.
- ↳ Recognises intersectionality and ensures better targeting of beneficiaries.
- ↳ Gender-based reservations enhance political participation and empowerment.

Concerns of Multi-axis affirmative action in India :-

- ↳ legal ambiguity : supreme court's 50% ceiling on reservations.
 Ex- Bihar govt. had to take back its 65% reservation quota for OBCs.
- ↳ Data gaps : Absence of updated caste census limits precision.
- ↳ political resistance : Dominant sub-castes often oppose reclassification.
 Ex- recent controversy regarding SC subcategorisation after supreme court verdict.
- ↳ implementation complexity : Risk of bureaucratic delays and litigation.

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The move towards multi-axis affirmative action reflects a maturing of India's social justice framework. While caste remains a critical determinant, expanding the policy lens to include gender, region and economic vulnerability enhances inclusivity. A robust data ecosystem and Judicial Clarity (50% ceiling) are essential for realising the full potential of this transformative shift.